

23CHCV01662 23CHCV01662

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 23CHCV01662 Hearing Date: August 12, 2026 Dept: F47

Dept. F47

Date: 8/12/26

TRIAL DATE: 5/3/27

Case #23CHCV01662

SUMMARY

JUDGMENT, OR IN THE ALTERNATIVE,

SUMMARY

ADJUDICATION

Motion filed on 8/19/25.

MOVING PARTY: Defendant County of Los Angeles

RESPONDING PARTY: Plaintiffs Emilio Valdovinos and Jaime
Madrigal

NOTICE: ok

RELIEF REQUESTED: An order granting summary
judgment as to the complaint filed by Plaintiffs Emilio Valdovinos and Jaime
Madrigal, or in the alternative, summary adjudication of the following issues:

Issue One: Plaintiffs' 42 U.S.C. § 1983 claims

fail as a matter of law, as Plaintiffs cannot identify any County policy for a

Monell claim, and Plaintiffs cannot prove deliberate indifference for failure to protect or supervisory liability claim.

Issue Two: Plaintiffs did not comply with the claims presentation requirements of the Government Claims Act.

Issue Three: There was no dangerous condition of public property.

Issue Four: Various government immunities shield the County from liability.

Issue Five: Plaintiffs Negligent Hiring cause of action cannot be brought against a government entity and Plaintiffs cannot prove the County negligently hired any County employee.

Issue Six: The claim for punitive damages in the Third and Fifth Causes of Action and Prayer for Relief is prohibited by law pursuant to Government Code § 818 and City of Newport v. Fact Concerns, Inc. (1981) 453 U.S. 247.

RULING: The motion is denied in its entirety.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an incident that occurred on 6/7/22 when Plaintiffs Emilio Valdovinos (Valdovinos) and Jaime Madrigal (Madrigal) (collectively, Plaintiffs) were inmates at Sierra Conservation Center and part of the inmate Firefighting Program. Plaintiffs were injured while in a crew carrier vehicle when another inmate used a gas canister inside the vehicle, a face mask and a sparker to light a cigarette. The other inmate dropped the lit face mask into the gas canister causing a flash fire inside the crew carrier vehicle.

On 6/8/23, Plaintiffs filed this action against Defendant Los Angeles County (Defendant) alleging causes of action for: (1) Dangerous Condition of Public Property; (2) Negligent Hiring/Training Supervision/Retention; (3) Failure to Protect From Harm Violation of the Fourteenth Amendment Violation (42 U.S.C. 1983); (4) Municipal Liability for Unconstitutional Policies, Procedures, Practices and Customs (42 U.S.C. 1983);

(5) Supervisory Liability for Unconstitutional Policies, Procedures, Practices and Customs (42 U.S.C. 1983) and (6) Negligence (not alleged against Defendant).

On 8/19/25, Defendant filed and served the instant motion seeking an order granting summary judgment as to the complaint filed by Plaintiffs Emilio Valdovinos and Jaime Madrigal, or in the alternative, summary adjudication of the following issues:

Issue One: Plaintiffs' 42 U.S.C. § 1983 claims fail as a matter of law, as Plaintiffs cannot identify any County policy for a Monell claim, and Plaintiffs cannot prove deliberate indifference for failure to protect or supervisory liability claim.

Issue Two: Plaintiffs did not comply with the claims presentation requirements of the Government Claims Act.

Issue Three: There was no dangerous condition of public property.

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Issue Six: The claim for punitive damages in the Third and Fifth Caused of Action and Prayer for Relief is prohibited by law pursuant to Government Code § 818 and City of Newport v. Fact Concerns, Inc. (1981) 453 U.S. 247.

The motion was originally scheduled for hearing on 1/12/26. After several continuances, the motion is now scheduled for hearing on 8/12/26.

On 5/20/26, Plaintiffs filed an opposition to the motion. On 7/31/26, Defendant filed a reply to the opposition and an Notice of Errata.

ANALYSIS

Defects In The Motion

First, the motion failed to include one of the five facts in separate statement. Although Defendant's separate statement set forth evidence in support of Fact No.4, no such fact was included in the separate statement. Additionally, Defendant failed to include certain evidence with its motion. Defendant's attempt to "cure" these defects, with a Notice of Errata filed and served after the opposition had been filed and served is unavailing.

Second, Defendant has failed to properly request and/or support the alternative request for summary adjudication.

CCP 437c(f)(1) provides:

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."

Additionally, with regard to summary adjudication, CRC 3.1350(b) provides, in relevant part, "[i]f summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (emphasis added).

Here, the notice of motion fails to set forth the specific causes of action or affirmative defenses sought to be adjudicated. Instead, the notice seemingly lumps together the 3rd, 4th and 5th causes of action under "Issue 1." Additionally, it is not clear if Issues 2, 3 and 4 are intended to address specific causes of

action, affirmative defenses, claims for damages or issues of duty. Further, Defendant has failed to set forth any of the issues in the accompanying separate statement. In fact, the separate statement indicates that it is only in support of Defendant's "Motion for Summary Judgment" without any reference to the alternative request for summary adjudication. (See Defendant's Separate Statement filed on 8/19/25).

Based on the foregoing, Defendant's defective alternative request for summary adjudication is denied.

Therefore, if one triable issue of material fact exists, the entire motion must be denied.

Plaintiffs' Federal Law Claims/Monell Claims

To prevail on a Monell claim, plaintiffs must show: (1) possession of a constitutional right of which they were deprived; (2) a municipal policy; (3) that the policy amounts to deliberate indifference to the plaintiffs' constitutional right; and (4) that the policy is the moving force behind the constitutional violation. *Oviatt By and Through Waugh* (9th Cir. 1992) 954 F.2d 1470, 1474.

Prison officials have a duty to "protect prisoners from violence at the hands of other prisoners" and to "take reasonable measures to guarantee the safety of inmates." *Farmer* (1994) 511 U.S. 825, 832-833. A constitutional violation occurs when: (1) an inmate is incarcerated under conditions that are "sufficiently serious" and objectively pose "a substantial risk of serious harm; and (2) the prison official must be subjectively aware of the risk and act with "deliberate indifference to inmate health and safety." *Id.* at 834, 839-840. Deliberate indifference is "something more than mere negligence" but "something less than acts or omissions for the very purpose of causing harm or with knowledge that harm will result." *Id.* at 835. Additionally, the Eighth Amendment's (prohibition of cruel and unusual punishment) "deliberate indifference" standard applies to convicted prisoners. *Id.* at 833.

Plaintiffs have adequately identified the constitutional right at issue and have invoked the Fourteenth Amendment in their 3rd cause of action. The alleged constitutional violation was the practice/policy of leaving large containers of gasoline unlocked and accessible to inmates who were known to smoke, in a vehicle where they were

left unsupervised for approximately 90 minutes.

(See Plaintiffs' Additional Facts (PAF) 12-18, 25-26, 28-33, 39-47).

Under the Fourteenth Amendment's substantive due process clause, the "shocks the conscience" standard governs. "When such extended opportunities to do better are teamed with protracted failure even to care, indifference is truly shocking." County of Sacramento (1998) 523 U.S. 833, 853. Here, Defendant's employees who were in charge of Plaintiffs were experienced firefighters aware of the risk that smoking near gasoline can cause explosions. Despite the knowledge of the risks associated with such conduct, Defendant's employees allowed such conduct to continue for years without correction. (PAF 32-34, 43, 47).

Based on the foregoing, a triable issue of material fact exists as to whether Plaintiffs' constitutional rights were violated.

A policy exists when a deliberate choice to follow a course of action is made from among various alternatives by the official or officials responsible for establishing final policy with regard to the subject matter in question. Castro (9th Cir. 2016) 833 F.3d 1060, 1075. An informal policy may be established by "a widespread practice that, although not authorized by an ordinance or an express municipal policy, is 'so permanent and well settled as to constitute a custom or usage with the force of law.'" Id. at fn.10. Such a custom usually cannot be established by a single constitutional deprivation, a random act, or an isolated event. Id. Rather, a plaintiff must show a pattern of similar incidents. Id.

A triable issue of material fact also exists with regard to whether Defendant had a policy, custom or practice that amounted to deliberate indifference of Plaintiffs' constitutional rights. The evidence indicates that although the compartment where the gas canisters were held had a lock, Defendant had no policy that the compartment was to be locked. (See Plaintiff's Ex.3 - Mottram Depo. 31:17, 31:22-24, 32:6-8, 35:8-17; Plaintiff's Ex.2 - Rodriguez Depo 54:19-22).

Defendant's post-incident remediation establishes that at the time of the incident there was no policy in place to protect against

inmates, who were known by Defendant's employees to smoke in crew carrier vehicles in violation of policy, accessing the gas canisters while unsupervised. (Rodriguez Depo 101:17-102:20, 103:1-2).

Similarly, the evidence establishes that a triable issue of material fact exists as to whether Defendant, through its employees, had a custom/practice of ignoring the fact that inmates were smoking in crew carrier vehicles which contained canisters of gasoline. (Rodriguez Depo 61:19-23, 62:22-25; Mottram Depo 38:1-4, 38:7-8). Defendant's employees took no action to stop the misconduct despite Defendant having a formal system for such situations. (Mottram Depo 37:13-15, 38:19-21, 41:15-25, 47:7-8, 51:16-19, 51:22-24, 52:6-21; Rodriguez Depo 63:13-16, 94:21-25).

For inaction cases, a plaintiff must show that the municipality had "actual or constructive notice that its omission would likely result in a constitutional violation," and that "the municipality could have prevented the violation with an appropriate policy." Tsao (9th Cir. 2012) 698 F.3d 1128, 1143-1145. A triable issue of material fact exists as to whether Defendant had actual or constructive notice. Defendant had written policies (Local Policy 12 and Holton #16) which prohibited tobacco as contraband and imposed a strict no smoking requirement on inmates in the fire camp program. Despite the foregoing, as noted above, Defendant's employees in charge of the inmates were aware of their violations of such policies and took no action to correct the inmates misconduct.

A triable issue of material fact exists as to whether the incident could have been prevented, if Defendant had enforced the no smoking policy and/or required the locking of the compartment which housed the gas canisters.

CONCLUSION

The motion is denied.

While it appears that the opposition concedes that certain of Plaintiffs' claims/causes of action are barred, it is not clear exactly which ones. In the "Introduction" to the opposition, Plaintiffs indicate that they are opposing Defendant's "issues" 1, 4 and 6. (See Opposition, p.3:11-21). On the other hand, the "Conclusion" to the opposition states that "Plaintiffs request that the Court Deny Defendant's Motion on Plaintiffs' fourth cause of action (i.e. the federal claims

brought under 42 U.S.C. §1983." (emphasis added) (Opposition, p.22:24-25). However, Plaintiffs' 3rd and 5th causes of action are also federal claims brought under 42 U.S.C. §1983 and seem to be encompassed in Issue 1.

Because Defendant's alternative request for summary adjudication fails for the reasons set forth above, these issues cannot be resolved on this motion. However, if Plaintiffs concede that certain of their causes of action are barred, they should dismiss those causes of action in the interests of justice and judicial economy. See CCP 128.7(b)(2).

The Court also notes that in violation of CRC 3.1110(f)(4), Plaintiffs' counsel has failed to properly electronically bookmark the exhibits attached to their Exhibit List. Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance, papers not being considered and/or the imposition of sanctions.